

## 23STCV23853 23STCV23853

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-11

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Case Number: 23STCV23853 Hearing Date: August 11, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

ANA HILDA OJEDA

vs.

BODEGA LATINA

CORPORATION dba EL SUPER

Case

No.: 23STCV23853

Hearing Date: August 11, 2026

Defendant's

motion for summary judgment is DENIED.

On

10/2/2023, Plaintiff Ana Hilda Ojeda (Plaintiff) filed suit against Defendant

Bodega Latina Corporation dba El Super (Defendant), alleging negligence.

On

2/11/2026, Defendant moved for summary judgment of Plaintiff's Complaint.

## Factual Background

This

premises liability action arises from an alleged slip and fall incident in the tortilla/cheese section. Specifically, Plaintiff alleges that on 10/5/2021, Plaintiff entered Defendant's grocery store and slipped on a "white yogurt-like substance" in the tortilla/cheese section. (UMF 1, 2.)

## Discussion

Defendant

argues that it is entitled to summary judgment because the undisputed evidence negates the essential elements of (1) notice and (2) causation, thereby precluding liability as a matter of law.

A store owner

is not an insurer of the safety of its patrons. (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205; Girvetz v. Boys' Market, Inc. (1949) 91 Cal.App.2d 827, 829.) The mere fact that an accident occurred on the premises does not give rise to a presumption of negligence. (Brown v. Poway Unified School Dist. (1993) 4 Cal.4th 820, 826.)

Rather, to

establish liability, a plaintiff must prove the standard elements of negligence: (1) duty, (2) breach, (3) causation, and (4) damages. (Ortega, supra, 26 Cal.4th at p. 1205.) In the context of a slip and fall, the element of breach is inextricably linked to the concept of notice. The owner must have had actual or constructive knowledge of the dangerous condition in time to remedy it. As stated by the California Supreme Court:

Although the

owner's lack of knowledge is not a defense, to impose liability for injuries suffered by an invitee due to a defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition...."

(Id. at  
p. 1206.)

#### Actual notice

exists where the owner or its employees had actual knowledge of the particular dangerous condition. (Hatfield v. Levy Bros. (1941) 18 Cal.2d 798, 806.)

Here, to show

it had no actual notice of the dangerous condition, Defendant submitted evidence that:

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Defendant's Risk Manager, David

Godinez, declared that no employee reported the spill and no customer complained of it prior to the fall. (UMF 6; Godinez Decl., ¶ 13.)

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Plaintiff testified she did not see the

yogurt before she fell and has no evidence anyone else did. (UMF 3; Plt's Depo. 23:9-11.)

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Plaintiff further testified she does

not know how long the yogurt was on the ground. (UMF 4; Plt's Depo. 23:17-20.)

#### Constructive

notice is a legal fiction that imputes knowledge to an owner if a dangerous condition has existed for a sufficient length of time that the owner, in the exercise of reasonable care, should have discovered it. (Ortega., supra, 26 Cal.4th at p. 1206.) The critical factors in this analysis are the (1) duration of the hazard and (2) the reasonableness of the owner's inspection practices.

Here, to show

that it did not have constructive notice of the spill, Defendant submitted evidence that:

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Plaintiff admits she did not see the

substance before she fell, and she has no knowledge of how long the substance

was on the floor. (UMF 3, 4.)

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There were no witnesses to the fall,  
and no employees or other customers reported the spill prior to the incident.  
(UMF 5-7.)

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Defendant's employees are trained to be  
vigilant for spills and to remedy and observed hazards immediately. (UMF 8.)

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Defendant maintains an inspection  
policy requiring sweeps of the store floor with a dust mop every 30 minutes.  
(UMF 9.)

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On the date of the incident, this  
policy was followed: Defendant's surveillance videos establish that the  
specific area where Plaintiff fell was inspected and swept by a store employee  
13 minutes prior to the incident. (UMF 10; Godinez Decl. ¶ 9-12, Ex. A, B.)

In *Ortega*,  
the plaintiff slipped on milk. There was no evidence of how long the milk had  
been there. Crucially, the evidence showed that the aisle had not been  
inspected for at least 15 to 30 minutes, and possibly up to two hours. (*Ortega*,  
*supra*, 26 Cal.4th at p. 1210.) The Supreme Court held that "evidence of  
the owner's failure to inspect the premises within a reasonable period of time  
is sufficient to allow an inference that the condition was on the floor long  
enough to give the owner the opportunity to discover and remedy it." (*Id.*  
at p. 1203.) However, the *Ortega* Court explicitly limited this inference,  
stating:

Allowing the  
inference does not change the rule that if a store owner has taken care in the  
discharge of its duty, by inspecting its premises in a reasonable manner, then  
no breach will be found even if a plaintiff does suffer injury.

(*Id.*  
at p. 1211.)

Here, unlike  
the Ortega defendant who failed to inspect for potentially two hours,  
Defendant here has proffered affirmative evidence, in the form of objective  
video surveillance video, of a sweep 13 minutes prior.

In support of  
its contention that a 13-minute interval constitutes "inspecting its premises  
in a reasonable manner" as a matter of law, Defendant points to the recent  
decision in *Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th  
102.

There, the  
plaintiff slipped on spilled oranges in a shopping center common area. The  
plaintiff asserted negligence based on constructive notice. The defendants  
moved for summary judgment, presenting evidence from a "Lighthouse" employee  
tracking system showing that a janitorial employee (a porter) had inspected the  
specific zone between eight and nine minutes prior to the fall. The Court of  
Appeal affirmed summary judgment for the defendants. The court accepted the  
electronic tracking data and employee declarations as competent evidence that  
an inspection occurred, and held that an interval of 8 to 9 minutes was  
insufficient to charge the defendants with constructive knowledge. (*Gonzalez*,  
*supra*, 106 Cal.App.5th at pp. 1031, 1038.)

Thus, unlike  
in *Gonzalez* where the Court relied on "zone" data which merely indicated  
that an employee was in the area 8-9 minutes before the incident, Defendant  
here has submitted actual video footage which shows an actual physical act of  
inspecting and sweeping the area where Plaintiff fell.

However, in  
opposition, Plaintiff submitted evidence that:

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Due to the patron and shopping cart  
traffic and improper sweeping methods, the exact area where Plaintiff slipped  
and fell was not swept or cleaned. (AMF #18)

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The Runner on the day of the incident,

Apolonia Farias' testified her sweep did not cover the entire aisle. (AMF #19)

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The dust mop Farias uses to sweep the store is not wide enough to cover the entire aisle. (AMF #20)

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Another surveillance video shows an employee sweep straight down the subject aisle at 07:42 on the left side of the aisle. (AMF #21)

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Another employee sweeps down the aisle at 41:25 on the middle and left side of the aisle. (AMF #22)

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Neither employee sweeps over the subject area where Plaintiff slipped and fell. (AMF #23)

Accordingly,

Plaintiff has submitted evidence that Defendant did not sweep the specific spot where Plaintiff fell 13 minutes prior to her fall. Plaintiff also submitted evidence that staff was not properly trained on how to conduct a proper sweep down the aisle to keep the floor safe from contaminants. Accordingly, the Court finds triable issues of fact exist which make summary judgment inappropriate this time.

Based on the foregoing, Defendant's motion for summary judgment is denied.

It is so ordered.

Dated: August  
, 2026

Hon. Jon R.  
Takasugi

Judge of the  
Superior Court

Parties who intend to submit on this tentative must send an email to the court at [email protected] by 4 p.m. the day prior as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.